

24CV05259 PoloDonkey, LLC vs. Tyler N. Quiel, et al

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-06

Motion: 1. Motion of Defendants Tyler N. Quiel and Diana Sandoval to Tax Costs 2. Motion of Defendants Tyler N. Quiel and Diana Sandoval for Stay of Enforcement of Judgment During Pendency of Appeal

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Tentative Ruling: PoloDonkey, LLC vs. Tyler N. Quiel, et al

Case Number

24CV05259

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 05/06/2026 - 10:00

Nature of Proceedings

1. Motion of Defendants Tyler N. Quiel and Diana Sandoval to Tax Costs 2. Motion of Defendants Tyler N. Quiel and Diana Sandoval for Stay of Enforcement of Judgment During Pendency of Appeal

Tentative Ruling

For Plaintiff PoloDonkey, LLC: Todd A. Amspoker, Jeff F. Tchakarov, Price Postel & Parma LLP

For Defendants Tyler N. Quiel and Diana Sandoval: John Forest Hilbert, Joseph A. LeVota, Hilbert & Satterly LLP

RULING

For all reasons discussed herein:

Defendants' motion to tax costs is granted in part and denied in part as follows:

PoloDonkey's recovery of Court reporter fees will be reduced to \$7,870.00.

\$1,596.48 for costs incurred from Nationwide Legal for secure document download of 3rd party subpoenas will be allowed and will not be taxed.

\$1,427.90 listed under "deposition fees," for service of deposition subpoenas will be allowed and will not be taxed.

All costs not challenged by Defendants will be allowed.

Defendants' motion for stay of enforcement of judgment during pendency of appeal is granted. Enforcement of the judgment, filed March 17, 2026, is temporarily stayed until such time as all rights to an appeal by Defendants are exhausted and a final, post-appeal judgment has been entered.

Background

On September 23, 2024, Plaintiff PoloDonkey, LLC, (PoloDonkey) filed a verified complaint against Defendants Tyler N. Quiel (Quiel) and Diana Sandoval (Sandoval) (collectively, "Defendants"), alleging six causes of action: (1) interference with easement; (2) private nuisance; (3) quiet title; (4) declaratory relief; (5) temporary restraining order and preliminary and permanent injunctions; and (6) quiet title to prescriptive easement. As alleged in the complaint:

PoloDonkey owns real property located at 3215 Foothill Road/3200 Serena Avenue, in Carpinteria, California (the PoloDonkey Property). (Compl., ¶ 8.) Defendants are the owners of property located at 3196 Serena Avenue, in Carpinteria, California (the Serena Property). (Compl., ¶ 9.) The PoloDonkey Property is benefitted by an express easement located on a portion of the Serena Property. (Compl., ¶¶ 11-13.) Contrary to the express language of the easement, Defendants have maintained a fence on and across the easement, blocking PoloDonkey's access and denying PoloDonkey a safe and unobstructed easement area. (Compl., ¶¶ 15-16.)

On November 26, 2024, Defendants filed a verified answer to the complaint, responding to its allegations and asserting forty-three affirmative defenses.

The matter was tried simultaneously before a jury and the Court on January 5, 6, 8, 9, 12, 13, 15, 16, 20, 22, and 23, 2026. Following the presentation of each side's respective cases, judgment was entered in favor of PoloDonkey.

On February 9, 2026, the Court issued its final statement of decision, and on March 17, 2026, the Court signed the judgment. The judgment requires Defendants to do, or abstain from doing, several things, including: (1) refraining from interfering with PoloDonkey's valid easement, including by maintaining or installing immobile fencing on the easement area or by preventing PoloDonkey free access through a swinging gate, (2) maintaining and keeping the easement area free of any obstructions that could unreasonably interfere with PoloDonkey's use and enjoyment of the easement for its purpose and scope as set forth in the Official Records of Santa Barbara County, (3) sign and deliver to PoloDonkey, within 10 calendar days after formal written request by PoloDonkey, the Owner/Applicant Consent Form referenced in the Letter re: Determination of Application Incompleteness, dated May 9, 2025, and sent by the Santa Barbara County Planning and Development Department to Ms. Eva Turenchalk, and any other documents required by the County, in order to allow the County to proceed with review and processing of Plaintiff's currently pending Coastal Development Permit application submitted on April 10, 2025, (4) remove the black locked mailbox, which Defendants installed at the intersection of the easement roadway and Serena Avenue and return and reinstall PoloDonkey's old mailbox to its previous location, and to refrain at any time in the future from removing or otherwise tampering with PoloDonkey's mailbox, (5) remove the bamboo fence from PoloDonkey's easement and refrain from installing any immobile fencing or other unreasonable obstructions on the easement area at any

time in the future, and (6) PoloDonkey has the right to maintain and preserve the existing access bridge within its full structural footprint. It was also ordered that PoloDonkey is entitled to recover its costs pursuant to Code of Civil Procedure section 1033, et seq.

On February 10, 2026, Defendants filed a notice of appeal of the judgment.

On March 18, 2026, PoloDonkey filed and served its memorandum of costs. Defendants now move to tax certain claimed costs. PoloDonkey opposes the motion.

Defendants also move to stay enforcement of the judgment during pendency of appeal. PoloDonkey has not filed opposition or any other response to the motion to stay enforcement.

Analysis

Motion to Tax Costs

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).)

Code of Civil Procedure section 1032, subdivision (a)(4), provides, in relevant part, “[p]revailing party’ includes the party with a net monetary recovery, a Defendant in whose favor a dismissal is entered, a Defendant where neither Plaintiff nor Defendant obtains any relief, and a Defendant as against those Plaintiffs who do not recover any relief against that Defendant. If any party recovers other than monetary relief and in situations other than as specified, the “ ‘prevailing party’ ” shall be as determined by the Court, and under those circumstances, the Court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.”

Defendants do not dispute that PoloDonkey is the prevailing party.

CCP § 1033.5(a) identifies cost items that are allowable under section 1032; CCP § 1033.5(b) identifies items that are not allowable; and CCP § 1033.5(c)(4) provides that “[i]tems not mentioned in this section ... may be allowed or denied in the Court’s discretion.” “Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “shall be reasonable in amount.” CCP § 1033.5(c)(2) & (3). “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. [Citation] Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial Court....” *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 (“*Ladas*”).

“[T]he verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary.” (612 South, LLC v. Laconic Limited Partnership (2010) 184 Cal.App.4th 1270, 1285.)

“[W]hen [costs] are properly challenged the burden of proof shifts to the party claiming them as costs.” (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.)

“[T]rial Courts have a duty to determine whether a cost is reasonable in need and amount.” (*Thon v. Thompson* (1994) 29 Cal.App.4th 1546, 1548.)

PoloDonkey's memorandum of costs totals \$46,218.06. Of that amount, Defendants seek to tax the following:

\$12,905.00 for Court reporter fees that include amounts for transcripts that were not ordered by the Court (the "transcripts"). Defendants argue that this amount should be reduced to \$7,663.00;

\$1,596.48 for costs incurred from Nationwide Legal for secure document download 3rd party subpoenas (the "document download"). Defendants argue that these costs are disallowed as investigation expenses in preparation for trial; and

\$1,427.90 listed under "deposition fees." Defendants argue that the costs were for service of deposition subpoenas and do not fit within the categories for deposition fees and are, instead, investigation expenses (the "service of subpoenas"). Defendants further argues that the costs are associated with subpoenas on parties who did not appear at trial, did not produce any documents used as evidence at trial, and did not otherwise contribute to the resolution of the matter.

Defendants do not challenge any of the other claimed costs.

By way of opposition, PoloDonkey states that the Court reporter overcharged by \$1,149.00, and therefore the total amount in Court reporter fees is \$11,756.00, rather than the \$12,905.00 appearing in the memorandum of costs. PoloDonkey states that, of that amount, \$3,886.00 is for fees paid to the Court reporter for rough draft and certified trial proceeding transcripts. The claim is evidenced by invoices attached to the declaration of PoloDonkey's counsel. This, as acknowledged in Defendants' reply brief, results in Defendants seeking to limit the Court reporter fees to \$7,870.00.

Code of Civil Procedure section 1033.5, subdivision (b)(5) specifically disallows costs for: "Transcripts of Court proceedings not ordered by the Court."

Defendants request that they should be allowed to recover the costs for the transcripts pursuant to Code of Civil Procedure section 1033.5, subdivision (c)(2)-(4). Those sections provide:

"(c) An award of costs shall be subject to the following: . . .

"(2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

"(3) Allowable costs shall be reasonable in amount.

"(4) Items not mentioned in this section and items assessed upon application may be allowed or denied in the Court's discretion."

By making this argument, Defendants ignore the above language that states: "Items not mentioned in this section . . ."

Transcripts are mentioned in the section and are specifically disallowed.

Defendants' reliance on *Glass v. Gulf Oil Corp.* (1970) 12 Cal.App.3d 417, is also unhelpful for Defendants. In that case, "although the transcript was not ordered by the Court, the parties agreed that it should be prepared to relieve counsel of the necessity for taking depositions, and that the cost would be shared. (Id. at p. 439.) The transcripts, which were mutually agreed upon, were "in lieu of further deposing those who testified at the earlier hearing . . ." (Id. at p. 440.)

Here, the transcripts were not ordered by the Court and there was no agreement between the parties for preparation of the transcripts. They are specifically disallowed and will be taxed. PoloDonkey's recovery of Court reporter fees will be reduced to \$7,870.00.

Defendants argue that the document download is disallowed as investigation expenses pursuant to Code of Civil Procedure section 1033.5, subdivision (b)(2).

In opposition, PoloDonkey argues that the document download should be considered a deposition cost because it was the result of obtaining business records through a deposition subpoena. PoloDonkey requests that the Court use its discretion and allow the costs pursuant to Code of Civil Procedure section 1033.5, subdivision (c)(2)-(4) or, alternatively, to consider the document download deposition costs.

After reviewing and considering the arguments for and against recovery of these costs, the Court does not believe that the document download is either an investigation cost or a deposition cost. Rather, the cost falls under Code of Civil Procedure section 1033.5, subdivision (c)(4) and are discretionary. The Court finds that the costs were reasonably necessary for the conduct of the litigation and were not merely convenient or beneficial to its preparation. The \$1,596.48 in costs for the document download will be allowed.

Defendants argue that the deposition fees, for serving the deposition subpoenas, are investigative expenses for preparing the case for trial and are specifically disallowed. They further argue that the costs are associated with subpoenas on parties who did not appear at trial, did not produce and documents used as evidence at trial, and did not otherwise contribute to the resolution of the matter. This being the case, Defendants argue, the costs were not reasonably necessary to the conduct of the litigation.

PoloDonkey argues that the service of the deposition subpoenas are costs associated with depositions and are allowable. In the alternative, PoloDonkey argues that the Court should award the costs pursuant to Code of Civil Procedure section 1033.5, subdivision (c)(2)-(4).

Defendants fail to provide any cogent argument of how the service of deposition subpoenas could constitute investigative expenses in preparing the case for trial. It is standard discovery and even if the obtained documents were not used at trial, counsel for PoloDonkey had a duty to conduct the discovery in order to properly represent PoloDonkey.

"Code of Civil Procedure section 1033.5 permits the recovery of costs for the " '[t]aking, video recording, and transcribing necessary depositions' " as well as for " '[s]ervice of process by a public officer, registered process server, or other means.' " [Citation.] " (Garcia v. Tempur-Pedic North America, LLC (2024) 98 Cal.App.5th 819, 823–824.) "[C]ourts routinely refuse to tax costs on the ground that a deponent did not end up testifying or providing useful testimony at trial. [Citation.] " (Id. at p. 825.)

The Court has considered the arguments presented, as well as considered the nature of this case, and finds that the service of subpoenas were reasonably necessary costs. They will be allowed.

Motion for Stay of Enforcement of Judgment

Defendants' motion for stay of enforcement of judgment is, as noted above, unopposed.

"(a) Except as provided in Sections 917.1 to 917.10, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial Court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial Court may proceed upon any other matter embraced in the action and not affected by the judgment or order.

“(b) When there is a stay of proceedings other than the enforcement of the judgment, the trial Court shall have jurisdiction of proceedings related to the enforcement of the judgment as well as any other matter embraced in the action and not affected by the judgment or order appealed from.” (Code Civ. Proc., § 916.)

“To prevent injuries “ ‘from the premature enforcement of a determination which may later be found to have been wrong,’ ” the law has developed a set of rules and procedures for staying enforcement of certain Court orders while they are reviewed on appeal. [Citation.] In California, a long-established set of rules governs stays of injunctive orders — that is, orders to do something or to refrain from doing something. What rule applies depends on which kind of order it is. An injunction that requires no action and merely preserves the status quo (a so-called prohibitory injunction) ordinarily takes effect immediately, while an injunction requiring the Defendant to take affirmative action (a so-called mandatory injunction) is automatically stayed during the pendency of the appeal.” (Daly v. San Bernardino County Bd. of Supervisors (2021) 11 Cal.5th 1030, 1035.)

As noted above, on February 10, 2026, Defendants filed a notice of appeal of the judgment. On February 20, 2026, Defendants filed their notice of designating record on appeal.

The mandatory injunctions contained in the judgment are automatically stayed. Those include: (1) removal of the bamboo fence, (2) the mailbox removal and installation, (3) the signing of consent form and other documents required by the County, (4) assumption of maintenance obligations, and (5) relinquishment of certain property rights relating to the existing bridge access.

Defendants further ask this Court to exercise its discretion and stay the remaining provisions of the judgment pursuant to Code of Civil Procedure section 918.

As the motion is unopposed, the Court will order the temporary stay of enforcement of the judgment, until such time as all rights to an appeal by Defendants are exhausted and a final, post-appeal judgment has been entered.

Judges

Judge Thomas Anderle

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